

tises from the second half of the 19th century and case law until the 1980s contain no support for this “clearly established law” test. Indeed, the Court adopted the test not because of “‘general principles of tort immunities and defenses,’” *Malley v. Briggs*, 475 U. S. 335, 339 (1986), but because of a “balancing of competing values” about litigation costs and efficiency, *Harlow, supra*, at 816.

There also may be no justification for a one-size-fits-all, subjective immunity based on good faith. Nineteenth-century officials sometimes avoided liability because they exercised their discretion in good faith. See, e.g., *Wilkes v. Dinsman*, 7 How. 89, 130–131 (1849); see also Nielson & Walker, A Qualified Defense of Qualified Immunity, 93 Notre Dame L. Rev. 1853, 1864–1868 (2018); Baude, Is Qualified Immunity Unlawful? 106 Cal. L. Rev. 45, 57 (2018); Engdahl, Immunity and Accountability for Positive Governmental Wrongs, 44 U. Colo. L. Rev. 1, 48–55 (1972). But officials were not *always* immune from liability for their good-faith conduct. See, e.g., *Little v. Barreme*, 2 Cranch 170, 179 (1804) (Marshall, C. J.); *Miller v. Horton*, 152 Mass. 540, 548, 26 N. E. 100, 103 (1891) (Holmes, J.); see also Baude, *supra*, at 55–58; Woolhandler, Patterns of Official Immunity and Accountability, 37 Case W. Res. L. Rev. 396, 414–422 (1986); Engdahl, *supra*, at 14–21.

Although I express no definitive view on this question, the defense for good-faith official conduct appears to have been limited to authorized actions within the officer’s jurisdiction. See, e.g., *Wilkes, supra*, at 130; T. Cooley, Law of Torts 688–689 (1880); J. Bishop, Commentaries on Non-Contract Law § 773, p. 360 (1889). An officer who acts unconstitutionally might therefore fall within the exception to a common-law good-faith defense.

Regardless of what the outcome would be, we at least ought to return to the approach of asking whether immunity “was ‘historically accorded the relevant official’ in an analogous situation ‘at common law.’” *Ziglar, supra*, at 157 (opinion of THOMAS, J.) (quoting *Imbler v. Pachtman*, 424 U. S. 409, 421 (1976)). The Court has continued to conduct this inquiry in absolute immunity cases, even after the sea change in qualified immunity doctrine. See *Burns v. Reed*, 500 U. S. 478, 489–492 (1991). We should do so in qualified immunity cases as well.²

² Qualified immunity is not the only doctrine that affects the scope of relief under § 1983. In *Monroe v. Pape*, 365 U. S. 167 (1961), the Court held that an officer acts “‘under color of any statute, ordinance, regulation, custom, or usage of any State’” even when state law did not authorize his action, *id.*,